

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 24, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 10, 2022. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending Section 9.08.020, Annoying, Obscene or Threatening Telephone Calls, of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the elements of the offense of annoying, obscene or threatening telephone calls. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#4470)

ORDINANCE – 2nd READING – Creating Section 9.04.070, Interference with Emergency Calls; Interference with Emergency Reporting System, of Chapter 9.04, Offenses by or Against Public Officers and Government, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated October 11, 2022, seconded by Dr. Rinne. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins.

ORDINANCE – 2nd READING – Amending Section 2.08.010, Appointment and Term-Removal-Vacancy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate an obsolete position and update a provision governing appointment of Judges. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located between Clear Creek Parkway and South Greeley Highway, south of College Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant and Betsey Hale, CEO of Cheyenne LEADS. Comments were made by the following members of the governing body: Dr. Aldrich.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County CB Community Business and County A-2 Agricultural to CB Community Business, AG Agricultural, and LI Light Industrial for land located between Clear Creek Parkway and South Greeley Highway, south of College Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant.

ORDINANCE – 1st READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, amending provisions governing the possession of alcoholic liquor or malt beverages in an open container as specified – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Certifying Planning Commission action amending the Cheyenne Area Future Land Use & Transportation Map of Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne, amending the land use category and transportation network for property generally located between I-25 and South Greeley Highway, south of College Drive). Motion (per Consent Agenda) carried. (#6277)

[CA] RESOLUTION – Supporting the conversion of a portion of Dutcher Ball Fields, located at 4200 Converse Avenue, Cheyenne, Wyoming from Perpetual Public Outdoor Recreation Use and committing to purchase and encumber three replacement properties to be deed restricted for Perpetual Public Outdoor Recreation Use pursuant to the requirements set forth in the Land and Water Conservation Fund Act. Motion (per Consent Agenda) carried. (#6278)

RESOLUTION – Authorizing the formation of the Wise Water Action Committee to develop a water conservation roadmap specific to Cheyenne and supported by City decision makers and community stakeholders. Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to postpone to November 14, 2022, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Rinne.

RESOLUTION – Approving Water and Sanitary Sewer Services, by Outside User Water and Sanitary Sewer Services Agreement, for Wyoming King Gold Mining Company, Inc., for all Section 36, T14N., R70W of the 6th P.M., Laramie County, Wyoming. Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to adopt, seconded by Mr. Roybal. Mr. White moved to amend by substitute dated October 19, 2022, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing

body with the exception of Dr. Aldrich voting “no”. Main motion as adopted carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Public comment was made by: Larry Wolf and Pat Crank. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave. (#6279)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Frontier Gardens 4th Filing, a replat of all of Lots 3 and 4, Block 17 and all of Lots 1 and 2, Block 16 and all of Moran Avenue adjacent thereto, Frontier Gardens 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located north of the intersection of Dell Range Boulevard and Moran Avenue). Motion (per Consent Agenda carried. (#6280)

RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer, purchase and sale of a specified portion of the property located at 1720 Cleveland Avenue. Mr. White moved to adopt, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated October 17, 2022, seconded by Mr. Esquibel. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins. (#6281)

RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for “A Taste of Cheyenne” to be held on November 12, 2022. Mr. Cook advised the item was reviewed under other items for the agenda at the October 18, 2022 Public Services Committee, therefore, provisions of Title 2 have been met. Mr. Cook moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Danica Rozinsky, DDA. Comments were made by the following members of the governing body: Mr. Johnson. (#6282)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for post-Thanksgiving shopping and the Christmas Parade to be held November 25 & 26, 2022 – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for the “Santa 0.5K” to be held on December 3, 2022 – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District Boundaries for New Year’s Eve on December 31, 2022 – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for High Plains Business Park, a plat of a portion of Sections 23 and 24, Township 13 North, Range 67 West, and Section 19, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located between I-25 and South Greeley Highway, south of College Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the Borie Wellfield Expansion Project in the amount of \$7,035,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying the Kiwanis (East) Park Greenway Underpass and Drainage Plan at the Union Pacific Railroad – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Certifying the East Pershing Boulevard Plan – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Certifying the Walterscheid Boulevard Reconstruction Plan – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for Community Services/Case Management Services provided to the Municipal Court as sentencing alternatives for juveniles (Revenue to the City). Motion (per Consent Agenda) carried. (#7624)

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2023 (Revenue to the City). Motion (per Consent Agenda) carried. (#7625)

[CA] Professional Services Agreement between the City of Cheyenne and AVI P.C., for the design of the Powderhouse Road and Carlson Street Intersection Project (2018-2022 Optional 1% Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$189,932.50). (#7626)

[CA] Professional Services Agreement between the City of Cheyenne and Roadway Asset Services LLC., for the Pavement Condition Survey and Rehabilitation Strategy Project (2018-2022 Optional 1% Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$149,503.00). (#7627)

[CA] Professional Services Agreement between the City of Cheyenne and Paladin Technologies Inc., for the Camera System and NVR System upgrades at the Cheyenne Public Safety Center (CPSC) (2012 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County Community College (LCCC) to provide Commercial Driver's License (CDL) "Your Truck" Training to City employees (Fleet Internal Service Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Terracon consulting engineers proposal for materials testing and special inspection services for new Emergency Response Facilities located at Converse Avenue, Countryside Avenue, and Hansen Street (3 locations) (2021 Specific Option Tax Fund) – referred to Finance Committee.

Appointment of Bradley M. Bowen as Assistant City Treasurer (Board of Public Utilities). Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointment). City Clerk Kris Jones administered the oath of office to Mr. Bowen.

Public comment was made by Jim Ridgeway on the Voucher Report as presented. Comments were made by the following members of the governing body: Mayor Collins and Mr. Johnson.

Comment was made Dr. Aldrich on the Revenue Report as presented.

Public comment was made by Jim Ridgeway and Seth Lloyd under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Collins, Mr. Esquibel and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:03 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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